

INDUSTRIAL COURT OF QUEENSLAND

CITATION: *Turay v Workers' Compensation Regulator (No 2)* [2023] ICQ 019

PARTIES: **SUSAN BALLU TURAY**
(appellant)
v
WORKERS' COMPENSATION REGULATOR
(respondent)

FILE NO: C/2023/4

PROCEEDING: Appeal and applications

DELIVERED ON: 15 August 2023

HEARING DATE: 4 August 2023

MEMBER: Davis J, President

ORDER: **The application to appeal and the two applications all dated 5 July 2023 are struck out.**

CATCHWORDS: APPEAL AND NEW TRIAL – APPEAL GENERAL PRINCIPLES – RIGHT OF APPEAL – WHEN APPEAL LIES – where the appellant appealed a decision of the Queensland Industrial Relations Commission – where the appeal was dismissed – where the appellant sought to mount a second appeal – whether second appeal is competent

APPEAL AND NEW TRIAL – PROCEDURE – QUEENSLAND – POWERS OF COURT – FURTHER EVIDENCE – where the appellant appealed a decision of the Queensland Industrial Relations Commission – where the appeal was dismissed – where the appellant sought to mount a second appeal – where on the second appeal the appellant sought to adduce further evidence – whether, if the appeal was competent, there was power in the court to receive further evidence

Criminal Code (Qld), s 668E
Human Rights Act 2019, s 48
Industrial Relations Act 2016, s 407, s 409, s 410, s 412, s 413, s 414, s 418, s 421, s 424, s 425, s 426, s 427, s 428, s 448, s 451, s 484, s 485, s 536, s 539, s 544, s 550, s 551, s 554, s 556, s 557, s 558, s 559, s 560, s 564, s 565, s 566, s 567
Industrial Relations (Tribunals) Rules 2011
Judicial Review Act 1991
Workers' Compensation and Rehabilitation Act 2003, s 131, s 549, s 560A, s 561, s 562, s 563, s 564

CASES: *Allesch v Maunz* (2000) 203 CLR 172; [2000] HCA 40, cited
Application by Brenda Atkinson to search and take copies of

documents [2001] ICQ 30; (2001) 167 QGIG 182, followed
Attorney-General (Cth) v Huynh (2023) 97 ALJR 298; [2023] HCA 13, cited
Bailey v Marinoff (1971) 125 CLR 529; [1971] HCA 49, cited
Builders Licensing Board v Sperway Constructions (Syd) Pty Ltd (1976) 135 CLR 616; [1976] HCA 62, followed
Burrell v The Queen (2008) 238 CLR 218; [2008] HCA 34, cited
Burton v Workers' Compensation Regulator [2022] ICQ 017, cited
CDJ v VAJ (1998) 197 CLR 172; [1998] HCA 67, followed
Commissioner for Railways (NSW) v Cavanough (1935) 53 CLR 220; [1935] HCA 45, followed
CSR Limited v Cigna Insurance Australia Ltd (1997) 189 CLR 345; [1997] HCA 33, followed
DJL v Central Authority (2000) 201 CLR 226; [2000] HCA 17, followed
Gould v Brown (1998) 193 CLR 346; [1998] HCA 6, followed
Grierson v The King (1938) 60 CLR 431; [1938] HCA 45, followed
Hawkins Road Transport Pty Ltd v Transport Workers' Union of Australia, Union of Employees [1999] QIC 20; 161 QGIG 108, followed
In re St Nazaire Co (1879) 12 Ch D 88, followed
International Finance Trust Co Ltd v New South Wales Crime Commission (2009) 240 CLR 319; [2009] HCA 49, followed
Khan v Workers' Compensation Regulator [2023] ICQ 002, cited
Kingdom of Spain v Infrastructure Services Luxembourg Sàrl (2023) 97 ALJR 276; [2023] HCA 11, cited
Kirk v Industrial Court (NSW) (2010) 239 CLR 531; [2010] HCA 1, cited
Minister for Immigration and Ethnic Affairs v Teoh (1995) 183 CLR 273; [1995] HCA 20, followed
NQEA Australia Pty Ltd v Dare (No 2); NQEA Australia Pty Ltd v Dare (No 3) [2003] ICQ 61; (2004) 175 QGIG 17, followed
Nutley v President, Industrial Court (2019) 1 QR 354; [2019] QSC 167, cited
Nutley v Workers' Compensation Regulator [2019] ICQ 002, cited
Oceanic Sun Line Special Shipping Co Inc v Fay (1988) 165 CLR 197; [1988] HCA 32, followed
Turay v Workers' Compensation Regulator [2023] QIRC 001, related
Turay v Workers' Compensation Regulator [2023] ICQ 013, related

Victorian Stevedoring and General Contracting Co Pty Ltd and Meakes v Dignan (1931) 46 CLR 73; [1931] HCA 34,

followed
Walsh v Law Society (NSW) (1999) 198 CLR 73; [1999] HCA 33, cited
Workers' Compensation Regulator v Glass (2020) 4 QR 693; [2020] QCA 133, followed

COUNSEL: The appellant appeared on her own behalf
 B I McMillan of Counsel for the respondent

SOLICITORS: The appellant appeared on her own behalf
 Workers' Compensation Regulator directly briefed
 Mr McMillan of Counsel

- [1] Susan Ballu Turay filed three documents in the registry, all dated 5 July 2023, namely an application to appeal and two other applications.
- [2] There are doubts as to the Court's jurisdiction to entertain the appeal and the two other applications. On 31 July 2023, I listed the matter for mention on 4 August 2023 and told the parties to be ready to make submissions as to the Court's jurisdiction to hear the applications.
- [3] The matter came before me on 4 August 2023. The respondent was named in the three applications as "Gavin Clark". Mr Clark is an employee of the Workers' Compensation Regulator (the Regulator). It was apparent that the correct respondent was the Regulator. With the Regulator's consent, I ordered that the Regulator be substituted for Mr Clark as the respondent in each application.
- [4] The Regulator, during the hearing on 4 August 2023, indicated an intention to apply to have the three applications struck out. I made directions for the filing of that application and the exchange of outlines of argument, and I set the proposed strike out application for hearing on 11 August 2023.
- [5] Outlines of argument were exchanged and oral argument was heard on 11 August 2023.

Background

- [6] Ms Turay was employed as a registered nurse by the Department of Health until 19 January 2018 when her employment was terminated.
- [7] On 16 November 2020, Ms Turay lodged a claim for workers' compensation pursuant to the *Workers' Compensation and Rehabilitation Act* 2003 (the WCR Act).
- [8] Any right to compensation arose on 14 November 2018.¹ Any application for compensation, by force of the WCR Act, had to be lodged by 14 May 2019. Ms Turay's application was made some 16 months late.

¹ *Turay v Workers' Compensation Regulator* [2023] QIRC 001 at [9] and *Turay v Workers' Compensation Regulator* [2023] ICQ 013 at [10].

- [9] WorkCover, the statutory insurer, declined to waive the breach of the time limit as it concluded that Ms Turay had not shown “reasonable cause” for her failure to lodge the application within time.²
- [10] Ms Turay sought to have the Regulator review WorkCover’s decision not to waive the time limit. The Regulator confirmed WorkCover’s decision. Ms Turay then appealed to the Queensland Industrial Relations Commission (QIRC).
- [11] The function of the QIRC was to hear *de novo* Ms Turay’s application for waiver of the time limit.
- [12] Ms Turay’s case before the QIRC was that she couldn’t lodge the application on time because she was suffering incapacitating mental health issues.
- [13] Before the QIRC, three witnesses of relevance to Ms Turay’s present application to appeal and other applications gave evidence:
1. Dr Johanna Skinner, general practitioner;
 2. Dr Crystal Pidgeon, general practitioner;
 3. Dr Anna Borges, psychologist.
- [14] In summary, Dr Skinner and Dr Pidgeon opined in their evidence before the QIRC that Ms Turay had capacity and Dr Borges opined that she did not. The QIRC affirmed the decision of the Regulator and in doing so, preferred the evidence of Dr Skinner and Dr Pidgeon to that of Dr Borges.³
- [15] Ms Turay appealed the QIRC’s decision to this Court. The appeal was heard on 24 May 2023 and dismissed on 16 June 2023.⁴ It was held that it was open to the QIRC to prefer Dr Skinner’s and Dr Pidgeon’s evidence to that of Dr Borges.⁵
- [16] Ms Turay filed in the Court three documents dated 5 July 2023:
1. Application to Appeal (Form 5);
 2. General Application to Industrial Court of Queensland (Form 2A);
 3. Application in Existing Proceedings (Form 4).
- [17] All three applications were purported to be filed in File No C/2023/4 which is the appeal that was dismissed on 16 June 2023.
- [18] The application to appeal states the details of the decision sought as:
- “Waiving time as per treating GP, Dr Joanna Skinner.
Time was waived initially and later overturned. Is that legal in the court system?”
- [19] It identifies the grounds of appeal as:

² *Workers’ Compensation and Rehabilitation Act 2003*, s 131(6)(c).

³ *Turay v Workers’ Compensation Regulator* [2023] QIRC 001 at [46], [53], [55], [60], [61], [63] and [64].

⁴ *Turay v Workers’ Compensation Regulator* [2023] ICQ 013.

⁵ At [162].

“Waiving time as per treating GP, Dr Joanna Skinner.
Time was waived initially and later overturned. Is that legal in the court system?
Please attach⁶ from Dr Joanna Skinner”

[20] The general application states the details of orders sought as:

“Waiving the time as per treating GP, Dr Joanna Skinner. Initial time was waived and later on, it was overturned. is that legal in west Minister System⁷ and why?”

[21] It identifies the grounds of the application as:

“See letter from Dr Joanna Skinner”

[22] The application in existing proceedings states that the orders sought are:

“Waiving time as per treating GP, Dr Joanna Skinner.
Time was waived initially and later overturned. Is that legal in the court system?”

[23] Attached to the application in the existing proceedings was a letter from Dr Skinner dated 30 June 2023. The letter is in these terms:

“I first consulted with Susan Turay at World Wellness Clinic on 14 November 2018. She was quite distressed as a result of work place bullying and I provided counselling and arranged a mental health plan after diagnosing an Adjustment Disorder.

I subsequently left the World Wellness Clinic and now work only at Camp Hill Health Care where I have been employed since November 2005.

I was asked to testify at a court case on 7 February 2020 to confirm that I did in fact consult with her following her work place issues and that I did do a mental health plan with a diagnosis of an Adjustment Disorder. I understand that she was overwhelmed and distressed at not being able work and provide for her family. I have not seen her again until today. She remains very distressed and continues to see her psychologist Dr Anna Borges and has seen Dr Leissa Ryan (clinical psychologist) who is currently on maternity leave.

I request that her ongoing poor mental health be taken into consideration as the main reason she was late with her application for workers compensation.”

[24] Dr Skinner gave evidence before the QIRC. In her notes of examination of Ms Turay, Dr Skinner said:

“cognition - nil issues
normal thought processes, excellent insight

⁶ This should read “Please see attached”.

⁷ Obviously a reference to Westminster system.

upset, angry at the fact she is in this position - frustrated
 fully oriented
 good insight and judgement
 excellent perception and memory
 very clear detailed history”⁸

[25] When asked about what was recorded in the notes, the following exchange occurred:

“Counsel: Does that reflect upon her capacity, for example, to complete paperwork or give instructions to a lawyer?

Dr Skinner: I don’t think - she had excellent cognition, so I would not have thought there was any difficulty with paperwork, no.”⁹

[26] Arguably, Dr Skinner’s letter of 30 June 2023 records an opinion which is favourable to Ms Turay but which is inconsistent with the evidence she gave to the QIRC.

[27] It was common ground that Ms Turay’s various applications should be regarded as her seeking to:

1. reopen the appeal to this Court;
2. have Dr Skinner’s letter of 30 June 2023 received as new evidence;
3. set aside the orders made on appeal to this Court;
4. set aside the orders made in the QIRC and waive time for filing the applications for compensation.

[28] Ms Turay also filed a letter under the hand of Mr Max Chandler-Mather, the Federal Member for Griffith. That letter is addressed to the Honourable Grace Grace, Queensland State Minister for Education, Industrial Relations and Racing. Mr Chandler-Mather, in his letter, says:

“I implore you to exercise ministerial intervention in the form of an appeal, ‘by way of rehearing’, with the following case, **Turay v Workers’ Compensation Regulator [2023] ICQ 013**. I understand that as the Minister you have grounds within your power, and ask that you act on behalf of my constituent.”

[29] Mr Chandler-Mather explains in his letter various of Ms Turay’s health concerns.

The Regulator’s application

[30] The Regulator seeks to strike out Ms Turay’s three applications on the basis that, on a proper construction of the statutory provisions governing appeals to this Court:

1. this Court has heard and determined Ms Turay’s appeal from the QIRC;
2. as regards that appeal, this Court is *functus officio*;

⁸ *Turay v Workers’ Compensation Regulator* [2023] QIRC 001 at [32].

⁹ *Turay v Workers’ Compensation Regulator* [2023] QIRC 001 at [34].

3. this Court has no jurisdiction to reopen the appeal, or receive further evidence;
4. therefore, the three applications have no prospect of success and ought to be struck out.

[31] Ms Turay filed extensive written submissions and made oral submissions. Many of Ms Turay's submissions concerned the merits of her claim for workers' compensation. Neither those submissions nor Mr Chandler-Mather's request for ministerial intervention are relevant to the jurisdictional question raised by the Regulator's strike-out application.

[32] As to the jurisdictional question, Ms Turay submitted:

1. the Court has jurisdiction under s 549 of the WCR Act;
2. the Court has inherent jurisdiction and can hear her applications;
3. the Court should heed the request for ministerial intervention;
4. Ms Turay's human rights are being violated by a denial of a right to appeal.

Consideration

[33] By s 407 of the *Industrial Relations Act* 2016 (2016 IR Act), this Court is established as a superior court of record. The Court consists of the President, a Vice President and any Deputy Presidents.¹⁰ The President has various executive functions.¹¹

[34] The President must be a judge of the Supreme Court of Queensland¹² and s 414 provides, relevantly:

“414 Effect of appointment as president

- (1) The appointment of, or service by, a Supreme Court judge as president does not affect—
 - (a) the judge's tenure of office as a judge; or
 - (b) the judge's rank, title, status, precedence, salary, annual or other allowances, or other rights or privileges as the holder of the office of a judge.
- (2) The president may perform the functions of office of both president and a Supreme Court judge...

[35] Section 414(2) does not mean that the President sits on, or may exercise the powers of a judge of the Supreme Court when sitting on this Court.¹³ Any jurisdiction exercisable by the President is sourced in the 2016 IR Act¹⁴ or other legislation which vests jurisdiction upon this Court.¹⁵

¹⁰ Sections 409 and 410.

¹¹ Section 412.

¹² Section 413.

¹³ See generally *Walsh v Law Society (NSW)* (1999) 198 CLR 73 at [64] and [65].

¹⁴ See generally s 424(1) although the President has limited prerogative powers of the Supreme Court (s 424(1)(e)) and the Court has the powers of the Supreme Court to punish for contempt (s 428).

- [36] Section 418 provides for the appointment of the Vice President who, amongst other qualifications, must be a lawyer of at least five years' standing. Deputy Presidents must have the same qualifications.¹⁵
- [37] The jurisdiction and powers of the Court are prescribed by Division 3 of Part 1 of Chapter 11. Those provisions are:

“424 Jurisdiction and powers

- (1) The court may—
 - (a) perform all functions and exercise all powers given to the court under this Act or another Act; and
 - (b) hear and decide, and give its opinion on, a matter referred to it by the commission; and
 - (c) hear and decide an offence against this Act, unless this Act provides otherwise; and
 - (d) hear and decide appeals from an industrial magistrate's decision in proceedings for—
 - (i) an offence against this Act; or
 - (ii) recovery of damages, or other amounts, under this Act; and
 - (e) if the court is constituted by the president, exercise the jurisdiction and powers of the Supreme Court to ensure, by prerogative order or other appropriate process—
 - (i) the commission and magistrates exercise their jurisdictions according to law; and
 - (ii) the commission and magistrates do not exceed their jurisdictions.
- (2) In proceedings, the court may—
 - (a) make the decisions it considers appropriate, irrespective of specific relief sought by a party; and
 - (b) give directions about the hearing of a matter.
- (3) The court's jurisdiction is not limited, by implication, by a provision of this Act or another Act.
- (4) The jurisdiction conferred on the court by this Act or another Act is exclusive of the jurisdiction of another

¹⁵ *Industrial Relations Act* 2016, s 424(1)(a).

¹⁶ Section 421.

court or tribunal, unless this or the other Act provides otherwise.

425 Limitations on jurisdiction

The court does not have jurisdiction to hear and decide a matter about which another Act excludes—

- (a) the jurisdiction of the court about the matter; or
- (b) the application of a decision under this Act about the matter.

426 Court's interpretation

The court's interpretation of a provision of this Act, an industrial instrument or permit binds—

- (a) the commission; and
- (b) magistrates; and
- (c) organisations and persons who are subject to this Act, or bound by the industrial instrument or permit.

427 Court may refuse to proceed

- (1) This section applies if—
 - (a) proceedings before the court relate to an industrial instrument; or
 - (b) an industrial instrument is sought in proceedings before the court.
- (2) The court may refuse to hear and decide the proceedings if any of the employees who are, or would be, bound by the instrument are—
 - (a) involved in an industrial dispute; or
 - (b) contravening this Act or a decision.
- (3) Subsection (2) applies whether or not the employees are employees whose employment may be affected by the decision to refuse to hear and decide the proceedings.

428 Contempt of court

- (1) The court has all the protection, powers, jurisdiction and authority of the Supreme Court for a contempt of court.
- (2) The court must comply with the *Uniform Civil Procedure Rules 1999* relating to contempt of court, with necessary changes.
- (3) The registrar or another officer of the court may apply to the court for an order that a person be committed to prison for contempt of court.

- (4) The court's jurisdiction to punish a contempt of the court may be exercised on the president's own initiative.
- (5) The court has jurisdiction to punish an act or omission as a contempt of the court in addition to any penalty that may be imposed for the act or omission."

[38] Part 5 of Chapter 11 concerns "Proceedings". It contains various provisions relevant to the conduct of proceedings in both the Court and the QIRC. Division 4 of Part 5 of Chapter 11 concerns the powers of the Court, the QIRC and the Registrar. Section 536 bestows various powers exercisable in interlocutory proceedings. There are various provisions, including s 539, which is in these terms:

"539 Powers incidental to exercise of jurisdiction

Except as otherwise provided for by this Act or the rules, the court, commission or registrar may—

- (a) at or before a hearing, take steps to find out whether all persons who are to be bound by a decision to be made in proceedings have been called to attend or given notice of, the proceedings; and
- (b) direct, for proceedings—
 - (i) who the parties to the proceedings are; and
 - (ii) by whom the parties may be represented; and
 - (iii) persons to be called to attend the proceedings, if the persons have not been called and it appears the persons should attend the proceedings; and
 - (iv) parties to be joined or struck out; and
 - (v) who may be heard and on what conditions; and
- (c) hear and decide an industrial cause in the way that appears best suited for the purpose; and
- (d) allow claims in the proceedings to be amended on terms that appear fair and just; and
- (e) correct, amend or waive an error, defect or irregularity in the proceedings, whether substantive or formal; and
- (f) give directions under a decision that the court, commission or registrar considers necessary for, or conducive and appropriate to, the effective implementation of the decision; and
- (g) hear and decide an industrial cause in the absence of a party, or person who has been called to attend or served with a notice to appear, at the proceedings; and
- (h) sit at any time and in any place for hearing and deciding an industrial cause, and adjourn a sitting to any time and place; and

- (i) refer technical matters, accounting matters, or matters involving expert knowledge to an expert, and admit the expert's report in evidence; and
- (j) extend a prescribed or stated time, before or after expiry of the time; and
- (k) waive compliance with the rules.” (emphasis added)

[39] Division 5 of Part 5 of Chapter 11 concerns “Decisions and Enforcement”. Section 544 provides:

“544 Decisions of court or commission

- (1) In the exercise of its jurisdiction, the court or commission may—
 - (a) make the decisions it considers necessary—
 - (i) in the interests of justice in proceedings before it; and
 - (ii) for the execution of another decision of the court or commission; and
 - (b) enforce its own decisions; and
 - (c) direct the issue of a writ or process; and
 - (d) impose and enforce a penalty allowed or prescribed by this Act or another Act in the same way a Supreme Court judgment is enforced.
- (2) A decision of the court or commission must be made and enforced in the same way as a judgment or order of the Supreme Court.
- (3) For subsection (2), the Uniform Civil Procedures Rules must be complied with to the extent reasonably possible, with the amendments the court or commission approves.
- (4) The registrar, deputy registrars, sheriff, bailiffs and officers of the Supreme Court or Magistrates Courts (*court officers*) are taken to be officers of the court and commission for—
 - (a) a decision, including the enforcement of a decision, of the court or commission; and
 - (b) imposing functions or conferring powers on court officers under the rules.”

[40] Division 8 of Part 5 of Chapter 11 concerns “Rules and practice”. Section 550 provides for a Rules committee and s 551 provides for the Governor in Council to make rules. These have been made.¹⁷ There is no rule which purports to authorise the reopening of an appeal.

¹⁷ *Industrial Relations (Tribunals) Rules 2011.*

- [41] By s 424(1)(a) of the 2016 IR Act, the Court has jurisdiction to perform functions and exercise powers. Division 2 of Part 6 of Chapter 11 of the 2016 IR Act bestows jurisdiction upon the Court to hear appeals. Those provisions are:

“556 Appeal from magistrate

A person aggrieved by a decision of a magistrate may appeal against the decision to the court.

557 Appeal from commission

- (1) The Minister or another person aggrieved by a decision of the commission may appeal against the decision to the court on the ground of—
 - (a) error of law; or
 - (b) excess, or want, of jurisdiction.
- (2) Also, the Minister or another person aggrieved by a decision of the commission may appeal against the decision to the court, with the court’s leave, on a ground other than—
 - (a) error of law; or
 - (b) excess, or want, of jurisdiction.
- (3) However, subsections (1) and (2) do not apply to the Minister or another person aggrieved by a determination of the commission under chapter 4, part 3, division 2.
- (4) If a person may appeal a decision of the commission under both subsections (1) and (2), the person may only appeal against the decision with the court’s leave on a ground mentioned in subsection (2).
- (5) In this section—

commission means the commission, other than the full bench constituted by the president and 2 or more other members.

558 What court may do

- (1) On an appeal under section 556 or 557, the court may—
 - (a) dismiss the appeal; or
 - (b) allow the appeal, set aside the decision and substitute another decision; or
 - (c) allow the appeal and amend the decision; or
 - (d) allow the appeal, suspend the operation of the decision and remit the matter, with or without directions, to the commission or an Industrial Magistrates Court to act according to law.

- (2) Also, the court may direct an industrial magistrate to issue a warrant for the appellant's arrest if—
 - (a) under the decision that was appealed, the appellant was sentenced to a term of imprisonment; and
 - (b) the appellant was released from custody by a magistrate under the rules made under section 551; and
 - (c) after the appeal is decided, discontinued or struck out, the appellant is still required to serve all or part of the term of imprisonment.
- (3) The industrial magistrate must comply with the direction.
- (4) When arrested, the appellant must be taken to a corrective services facility within the meaning of the *Corrective Services Act 2006* to serve the unexpired portion of the term of imprisonment to which the appellant was sentenced.

559 President must hear and decide particular appeals from full bench

If an appeal is made under section 557 against a decision of the full bench—

- (a) the appeal must be heard and decided by the court constituted by the president; and
- (b) an interlocutory proceeding relating to the appeal may be heard and decided by the vice-president or a deputy president (court)."

[42] There are general provisions concerning appeals. These are found in Division 5 of Part 6 of Chapter 11. Section 564 limits the time for appeals. Section 565 prescribes when leave should be given under ss 554, 557 or 560. Section 566 gives a power to stay a decision under appeal. Section 567 defines the nature of an appeal. Nothing in Division 5 is relevant to the current question.

[43] It is necessary to consider various provisions relevant to the QIRC. While a fundamental and primary function of the Court is to hear appeals, the QIRC has a much more diverse jurisdiction. Section 448 provides:

“448 Commission’s jurisdiction

- (1) The commission may hear and decide the following matters—
 - (a) a question of law or fact brought before it or that it considers expedient to hear and decide for the regulation of a calling;
 - (b) all questions—

- (i) arising out of an industrial matter; or
 - (ii) involving deciding the rights and duties of a person in relation to an industrial matter; or
 - (iii) it considers expedient to hear and decide about an industrial matter;
 - (c) an industrial dispute referred to the commission under this Act or another Act by a member who has held a conference at which no agreement has been reached;
 - (d) all appeals properly made to it under this Act or another Act;
 - (e) all matters referred to the commission under this Act or another Act.
- (2) The commission may regulate a calling by an award—
- (a) on application by an organisation, an employer, or 20 employees (who are not members of an employee organisation and not covered by an award) in a calling; or
 - (b) on application by the Minister; or
 - (c) on its own initiative.
- (3) The commission—
- (a) may hold an inquiry into or about an industrial matter on application by an interested person or on its own initiative; and
 - (b) must hold an inquiry into or about an industrial matter if the Minister, by notice, directs.
- (4) The commission must report the result of the inquiry, and make recommendations, to the Minister.
- (5) The commission may consolidate into 1 award all awards that apply to or affect an employer or class of employer in a calling, or the members of an organisation employed by the same employer or class of employer—
- (a) on application by an organisation or an employer; or
 - (b) if the Minister, by notice, directs.
- (6) When exercising power under subsection (5), the commission may make the amendments it considers necessary or convenient to give effect to the consolidated award.

- (7) No provision of this Act or another Act limits, by implication, the commission's jurisdiction.
- (8) In this section—
class includes a section of a class.”¹⁸

[44] The general powers of the QIRC are prescribed by s 451 in these terms:

“451 General powers

- (1) The commission has the power to do all things necessary or convenient to be done for the performance of its functions.
- (2) Without limiting subsection (1), the commission in proceedings may—
 - (a) give directions about the hearing of a matter; or
 - (b) make a decision it considers appropriate, irrespective of the relief sought by a party; or
 - (c) make an order it considers appropriate.
- (3) The commission may, by general order or for a particular case, delegate to the registrar—
 - (a) the working out of a decision of the commission to implement the decision; or
 - (b) a function relating to the decision, including, for example—
 - (i) the giving of directions; or
 - (ii) the making of orders; or
 - (iii) the preparation of rosters and schedules; or
 - (iv) a similar function it considers appropriate.
- (4) The full bench may, to assist it in the resolution of proceedings—
 - (a) refer the whole or part of a question or matter before it to the commission—
 - (i) for investigation by the commission and the preparation of a report on the investigation; or
 - (ii) for another action it decides; or
 - (b) direct 1 or more of its members to carry out an investigation or inspection and prepare a report on the investigation or inspection.

¹⁸ See also Chapter 11, Part 2, Division 4.

- (5) The commission or member must comply with the reference or direction.”

[45] Section 484 gives specific power to the QIRC to reopen proceedings. Section 484 and s 485, which is referred to in s 484(1), are:

“484 Power to reopen proceedings

- (1) On application by a person mentioned in section 485, proceedings may be reopened by—
 - (a) for proceedings taken before the full bench—the full bench; or
 - (b) otherwise—the commission.
- (2) If the commission reopens proceedings, it may—
 - (a) revoke or amend a decision or recommendation made by it; and
 - (b) make the decision or recommendation it considers appropriate.
- (3) If a recommendation of the commission has been acted on by the Governor in Council and the commission later revokes or amends the recommendation, the Governor in Council may—
 - (a) cancel the action taken on the recommendation to accord with the commission’s revocation or amendment; or
 - (b) amend the action to accord with the commission’s revocation or amendment.
- (4) Failure to give notice to a person of the proceedings reopened under this section, or any part of the proceedings, leading to the making by the commission of a decision binding on the person—
 - (a) does not invalidate or otherwise affect the decision; but
 - (b) the person may apply to further reopen the proceedings if—
 - (i) the person may apply for reopening of proceedings under section 485; and
 - (ii) the person’s failure to participate in the previously reopened proceedings was because of the failure to give the notice.
- (5) If the commission grants an application for reopening, it may give the retrospective operation to its decision made in the reopened proceedings it considers appropriate.

485 Who may apply to reopen proceedings

An application for reopening of proceedings may be made by—

- (a) the Minister; or
- (b) a party to the proceedings; or
- (c) for proceedings other than proceedings relating to the making of a certified agreement or bargaining award—
 - (i) an organisation whose members are bound or affected by, or dissatisfied with, the proceedings; or
 - (ii) a person who—
 - (A) is bound or affected by, or dissatisfied with, the proceedings; and
 - (B) satisfies the commission the person is not an officer of, or acting for, an entity (other than an industrial organisation) that purports to represent the industrial interests of employees or employers.”

[46] The WCR Act confers powers upon the Court to hear appeals from, relevantly here, the QIRC in relation to decisions made under the WCR Act. Sections 560A, 561, 562, 563 and 564 provide:

“560A Application of div 1A

This division applies to the following decisions—

- (a) a decision of the industrial commission under chapter 4, part 6;
- (b) a decision of an industrial magistrate or the industrial commission under division 1.

561 Appeal to industrial court

- (1) A party aggrieved by the industrial magistrate’s or the industrial commission’s decision may appeal to the industrial court.
- (2) The *Industrial Relations Act 2016* applies to the appeal.
- (3) The appeal is by way of rehearing on the evidence and proceedings before the industrial magistrate or the industrial commission, unless the court orders additional evidence be heard.
- (4) The court’s decision is final.

562 Powers of industrial court

- (1) In deciding an appeal, the industrial court may—
 - (a) confirm the decision; or
 - (b) vary the decision; or
 - (c) set aside the decision and substitute another decision.
- (2) If, on an appeal in relation to a decision mentioned in section 560A(a), the court acts under subsection (1)(b) or (c), the decision of the court is taken for this Act, other than this division, to be the decision of the industrial commission.
- (3) If, on an appeal in relation to a decision mentioned in section 560A(b), the court acts under subsection (1)(b) or (c), the decision of the court is taken for this Act, other than this division, to be the decision of the insurer.

563 Costs of appeal to industrial court

- (1) On an appeal, the industrial court may order a party to pay costs incurred by another party only if satisfied the party made the application vexatiously or without reasonable cause.
- (2) Costs of the order are to be in accordance with the *Industrial Relations (Tribunals) Rules 2011*, rule 70.

564 Recovery of costs

- (1) If the industrial court makes an order for costs, the amount ordered to be paid is a debt payable to the party in whose favour the order is made.
- (2) The order may be filed in the registry of a court having jurisdiction for the recovery of a debt of the amount.
- (3) On being filed, the order—
 - (a) is taken to be an order properly made by the court; and
 - (b) may be enforced as an order made by the court.”

[47] In various cases, a tension has been noticed between s 557 of the 2016 IR Act and s 561 of the WCR Act.¹⁹ Section 557 limits an appeal from the QIRC to grounds of error of law or excess or want of jurisdiction. In s 561, an appeal from the QIRC in relation to a decision made under the WCR Act is an appeal by way of rehearing.

¹⁹ *Nutley v President, Industrial Court* (2019) 1 QR 354, *Nutley v Workers' Compensation Regulator* [2019] ICQ 002, *Burton v Workers' Compensation Regulator* [2022] ICQ 017 and *Khan v Workers' Compensation Regulator* [2023] ICQ 002.

[48] In *Workers' Compensation Regulator v Glass*,²⁰ Sofronoff P held that the avenue of appeal to this Court from the QIRC in relation to decisions made under the WCR Act came from s 561 of the WCR Act (not s 557 of the 2016 IR Act) and that s 561(2) effectively picks up the powers and procedures bestowed upon this Court by the 2016 IR Act.²¹

[49] The interaction between the 2016 IR Act and the WCR Act was the subject of consideration in Ms Turay's appeal to this Court which was dismissed.²² It was there concluded:

“[76] Section 557 of the 2016 IR Act gives a right of appeal generally from decisions of the QIRC. It does not provide an appeal against decisions made by the QIRC under the WCR Act. Section 561 of the WCR Act does that. None of the provisions of Division 2 of Part 6 of Chapter 11 applies to appeals under the WCR Act. In particular:

1. Section 556 of the 2016 IR Act: Section 561(1) of the WCR Act provides an avenue of appeal from the Industrial Magistrates Court or the QIRC to this Court in relation to decisions made under the WCR Act. Section 556 of the 2016 IR Act must only concern other appeals.
2. Section 557 of the 2016 IR Act: As already observed, s 561(1) of the WCR Act provides the avenue of appeal from the QIRC, not s 557 of the 2016 IR Act which provides for other appeals from the QIRC.
3. Section 558 of the 2016 IR Act: Section 562 of the WCR Act provides the powers of this Court upon an appeal from the QIRC on matters under the WCR Act. Section 558 of the 2016 IR Act vests powers on this Court in relation to other appeals from the QIRC.
4. Section 559 of the 2016 IR Act: Section 559 of the 2016 IR Act has no application to appeals against decisions under the WCR Act because an appeal from the QIRC in a case under the WCR Act is an appeal under s 561 of the WCR Act, not s 557 of the IR Act. Therefore, no ‘appeal’ is made under s 557.

[77] Division 5 of Part 6 of Chapter 11 of the 2016 IR Act does apply, at least in part, to appeals under the WCR Act:

1. Section 563 of the 2016 IR Act: Section 563 of the 2016 IR Act is the definitions section. This Court, being the court to which an appeal lies under s 561 of the WCR Act, is included in the definition of ‘industrial tribunal’ in s 563 of the 2016 IR Act.

²⁰ (2020) 4 QR 693.

²¹ *Workers' Compensation Regulator v Glass* (2020) 4 QR 693 at [13]-[15].

²² *Turay v Workers' Compensation Regulator* [2023] ICQ 013, commencing at [23].

2. Section 564 of the 2016 IR Act: Section 564 of the 2016 IR Act limits the time for appeal. Nothing in s 561 of the WCR Act speaks of a time limit for an appeal. There is no reason why s 564 would not apply to appeals under the WCR Act. This is confirmed by the extrinsic material to the *Electrical Safety Amendment Act*.
3. Section 565 of the 2016 IR Act: Section 565 of the 2016 IR Act only applies to appeals under ss 554, 557 or 560 of the IR Act. An appeal against the QIRC's decision under the WCR Act is an appeal under s 561 of the WCR Act.
4. Section 566 of the 2016 IR Act: Section 566 of the 2016 IR Act concerns stays of judgments pending appeal. It is clearly intended that s 566 applies generally to appeals under the WCR Act. Section 566(2) specifically accepts some appeals from its operation.
5. Section 567 of the 2016 IR Act: Section 567 of the 2016 IR Act provides the 'nature of appeal'. Section 561 of the WCR Act specifically provides for the nature of an appeal under the WCR Act and therefore, at least to the extent of any inconsistency, s 561 would prevail over s 567. However, s 561 of the WCR Act and s 567 of the 2016 IR Act are equivalents.

[78] Therefore, on a proper construction of s 561 of the WCR Act, Division 1 of Part 6 of Chapter 11 of the 2016 IR Act does not apply to appeals brought under s 561 of the WCR Act. The purpose of s 557 of the 2016 IR Act is to grant a right of appeal. With appeals under the WCR Act, the right of appeal is bestowed by s 561 of the WCR Act. Section 561(2) of the WCR Act operates so as to apply the provisions of Division 5 of Chapter 11 of the 2016 IR Act to appeals launched under s 561(1) of the WCR Act.” (footnotes omitted)

[50] Because the avenue of appeal available to Ms Turay from the QIRC is by force of s 561 of the WCR Act, there is no right of appeal from this Court to the Court of Appeal. That is because s 561(4) of the WCR Act makes this Court's decision final and s 554 of the 2016 IR Act does not apply.²³

[51] As earlier observed, Ms Turay wishes to reopen her appeal and seek leave to adduce fresh evidence. Section 567 of the 2016 IR Act empowers this Court to admit further evidence on appeal, although s 567 probably has no application to an appeal to this Court under the WCR Act.²⁴ However, s 561 of the WCR Act clearly applies to Ms Turay's appeal and s 561(3) empowers this Court to admit additional evidence.

[52] Ms Turay's problem though is whether this Court may reopen the appeal.

²³ *Workers' Compensation Regulator v Glass* (2020) 4 QR 693.

²⁴ *Turay v Workers' Compensation Regulator* [2023] ICQ 013 at [77]; see sub-paragraph 5.

- [53] Appeals are creatures of statute and the availability of an appeal and the nature of it depend upon the proper construction of the statute.²⁵ The general rule is that “*since the late nineteenth century, a court or judge has had no power to review, rehear, vary or set aside any judgment after it has been passed and entered, or any order after it has been drawn up*”.²⁶ Whether an appeal court has jurisdiction to reopen a finalised appeal for further consideration is a matter of construction of the relevant statute granting the right of appeal.²⁷
- [54] An early example of the application of this principle is *Grierson v The King*.²⁸ There, the High Court determined that a criminal appeal conducted under an equivalent to s 668E of the *Criminal Code* (Qld) could not be reopened once determined. The Court held that on a proper construction of the statute under consideration “*the determination of an appeal is evidently definitive, and a conviction unappealed is equally final*”.²⁹
- [55] There is nothing in either the WCR Act or the 2016 IR Act which expressly empowers this Court to reopen an appeal once judgment has been given. The powers of this Court are limited.³⁰
- [56] While this Court is a superior court of record, it is one of limited jurisdiction with no inherent powers.³¹
- [57] In *Application by Brenda Atkinson to search and take copies of documents*,³² this Court was asked to make orders concerning documents which had come into possession of the QIRC pursuant to powers exercised by it. President Hall found:

“In my view it is settled that as a statutory tribunal the Industrial Court of Queensland has no inherent jurisdiction, see *Hawkins Road Transport Pty Ltd v Transport Workers’ Union of Australia, Union of Employees (Queensland Branch)* (1999) 161 QGIG 108 and *WorkCover Queensland v Trever Ernest Markwell (No. 2)* (2001) 165 QGIG 351. It may be acknowledged that the grant of various statutory powers to a court of statutory creation carries with it, by implication, the power to do that which is incidental to the exercise of the power, see *Jackson v Sterling Industries Limited* (1987) 162 CLR 612 and *NCSC v Bankers Trust Australia Limited* (1989) 91 ALR 321. However, the implication of a power to alter orders of the

²⁵ *Victorian Stevedoring and General Contracting Co Pty Ltd and Meakes v Dignan* (1931) 46 CLR 73 at 108, *Commissioner for Railways (NSW) v Cavanough* (1935) 53 CLR 220 at 225, *Builders Licensing Board v Sperway Constructions (Syd) Pty Ltd* (1976) 135 CLR 616 at 621-622, *CDJ v VAJ* (1998) 197 CLR 172 at [95] and *Gould v Brown* (1998) 193 CLR 346 at [210].

²⁶ *International Finance Trust Co Ltd v New South Wales Crime Commission* (2009) 240 CLR 319 at [129] following *Burrell v The Queen* (2008) 238 CLR 218, *Grierson v The King* (1938) 60 CLR 431 and *In re St Nazaire Co* (1879) 12 Ch D 88 and see *Bailey v Marinoff* (1971) 125 CLR 529 at 530.

²⁷ *DJL v Central Authority* (2000) 201 CLR 226 at [40].

²⁸ (1938) 60 CLR 431, recently approved in *Attorney-General (Cth) v Huynh* (2023) 97 ALJR 298.

²⁹ *Grierson v The King* (1938) 60 CLR 431 at 436.

³⁰ *Industrial Relations Act* 2016, s 424, s 558, *Workers’ Compensation and Rehabilitation Act* 2003, s 562.

³¹ *Hawkins Road Transport Pty Ltd v Transport Workers’ Union of Australia, Union of Employees* [1999] QIC 20; 161 QGIG 108 and *NQEA Australia Pty Ltd v Dare (No 2)*; *NQEA Australia Pty Ltd v Dare (No 3)* [2003] ICQ 61; (2004) 175 QGIG 17.

³² [2001] ICQ 30; (2001) 167 QGIG 182.

Queensland Industrial Relations Commission is not necessary to give efficacy to the various powers vested in the Industrial Court of Queensland.”

- [58] A court of limited jurisdiction, while not possessing inherent jurisdiction, does possess implied powers which are necessary to exercise the limited jurisdiction bestowed upon it.³³
- [59] In *DJL v Central Authority*,³⁴ the High Court considered the jurisdiction of the Full Family Court of Australia to reopen an appeal which had been determined. There was no express power to do so and the question was whether there was any inherent or implied jurisdiction.
- [60] The majority³⁵ all held that where the right of appeal is conferred by statute, any power to reopen must be conferred by the statute and that is a question of construction.³⁶ The status of the Full Family Court as a superior court of record did not carry with it an inherent or implied power to reopen a finalised appeal. The Court concluded by majority³⁷ that no such power was implied. The statement of principle in *DJL v Central Australia* then leads to a question of construction of the 2016 IR Act and the WCR Act.
- [61] This Court does not have express power to reopen the appeal and there is nothing to suggest that it has an implied power. All the indications are to the contrary.
- [62] In particular:
1. there is no express power to reopen;
 2. there is a limited power to correct error;³⁸
 3. while not bestowing an express power upon the Court to reopen an appeal to it, the legislature bestowed such a power on the QIRC,³⁹ and by inference indicated a legislative intent that the Court has no such power;
 4. the powers of the Industrial Court on appeal are specifically limited to confirming the decision, varying the decision or setting aside the decision and substituting another decision;⁴⁰
 5. section 561(4) of the WCR Act specifically provides that this Court’s decision is final.
- [63] Ms Turay says she has a human right to an appeal. International conventions are not part of the domestic law of Queensland⁴¹ and Ms Turay’s reliance on them is

³³ *CSR Limited v Cigna Insurance Australia Ltd* (1997) 189 CLR 345 and *Oceanic Sun Line Special Shipping Co Inc v Fay* (1988) 165 CLR 197.

³⁴ (2000) 201 CLR 226, followed in *Allesch v Maunz* (2000) 203 CLR 172.

³⁵ Gleeson CJ, Gaudron, McHugh, Gummow and Hayne JJ and Callinan J.

³⁶ At [40]; that is the statement of principle.

³⁷ Kirby J in dissent.

³⁸ *Industrial Relations Act* 2016, s 539(e).

³⁹ *Industrial Relations Act* 2016, s 484.

⁴⁰ *Workers’ Compensation and Rehabilitation Act* 2003, s 562(1).

⁴¹ See generally *Minister for Immigration and Ethnic Affairs v Teoh* (1995) 183 CLR 273, although statutory provisions should be interpreted consistently, if possible, with international law; *Kingdom*

misplaced. The *Human Rights Act* 2019 does not recognise a human right to an appeal. Even if it did:

1. Ms Turay had her appeal;
2. the right would only be relevant to the interpretation of the 2016 IR Act;⁴²
3. the 2016 IR Act is, for the reasons given, clear and could not be construed consistently with any right to reopen a concluded appeal.

[64] I find that on a proper construction of the 2016 IR Act and the WCR Act there is no jurisdiction to reopen Ms Turay's appeal.

Conclusions

[65] In *Workers' Compensation Regulator v Glass*,⁴³ it was held that an unsuccessful appellant to this Court who challenges the decision made under the WCR Act had no right of appeal to the Court of Appeal. That is because s 561(4) of the WCR Act provides that this Court's decision is final and s 554 of the 2016 IR Act did not provide an avenue of appeal from this Court to the Court of Appeal.

[66] A privative provision such as s 561(4) of the WCR Act cannot exclude a right of review based on jurisdictional error.⁴⁴ This Court's decisions made under s 561 of the WCR Act are subject to prerogative review under the provisions of the *Judicial Review Act* 1991.⁴⁵

[67] However, Ms Turay's application to appeal and the two other applications ought to be struck out as this Court has no jurisdiction to hear them.

Orders

[68] The orders are:

The application to appeal and the two applications all dated 5 July 2023 are struck out.

of Spain v Infrastructure Services Luxembourg Sàrl (2023) 97 ALJR 276 at [16] and the cases there cited.

⁴² *Human Rights Act* 2019, s 48.

⁴³ (2020) 4 QR 693.

⁴⁴ *Kirk v Industrial Court (NSW)* (2010) 239 CLR 531.

⁴⁵ *Nuttley v President, Industrial Court* (2019) 1 QR 354.